

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***Aurelia Sargent v. Jessica Martinez***
Superior Court Case No. 25CECG03825

Hearing Date: August 19, 2026 (Dept. 501)

Motion: by Plaintiff to Change Venue

Tentative Ruling:

To grant.

Explanation:

The proper court for a personal injury action is the superior court in either the county where the injury occurred or the county where at least some of the defendants reside at the commencement of the action. (Code Civ. Proc., § 395, subd. (a).) If it appears the court where the action is commenced is not the proper court, the action shall be transferred to the proper court. (Code Civ. Proc., § 396a, subds. (b) and (e); see also Code Civ. Proc., § 397, subd. (a) [permissive].)

The injury central to the Complaint in the present action occurred in Manteca, California, which is located in San Joaquin County. (Compl., ¶¶ GN-1, Prem.L-1.) Both Plaintiff and Defendant are aware that the proper venue for this matter should be the superior court in San Joaquin County. (Matin Decl., ¶¶ 2, 4.) Defendant does not oppose this motion. The court intends to grant the motion.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/17/26
(Judge's initials) (Date)